

The Assam Electricity Control (Emergency Powers) Act, 1947

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State of Assam - Act

The Assam Electricity Control (Emergency Powers) Act, 1947

ASSAM

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The Assam Electricity Control (Emergency Powers) Act, 1947

Act 9 of 1947

Published on 30 April 1947

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The Assam Electricity Control (Emergency Powers) Act, 1947

Assam Act

9 of 1947

Last Updated 11th February, 2020

Published in the Assam Gazette, dated the 30th April, 1947.

An Act to provide for the continuance of control in respect of production, distribution, use and consumption of electrical energy.

Whereas it is expedient to provide for the control heretofore exercised in respect of production, distribution use and consumption of electrical energy;

It is hereby enacted as follows :

1.

Short title, extent and commencement.

(1)

This Act shall be called the Assam Electricity Control (Emergency Powers) Act, 1947.

(2)

It extends to the whole of Assam.

(3)

It shall come into force at once.

2.

Control of production, distribution, use and consumption of electrical energy.

- The State Government, so far as it appears to it to be necessary or expedient for maintaining supplies and services essential to the life of the community, may by order provide for-

(a)

regulating or prohibiting the production, distribution, use or consumption of electrical energy; and

(b)

any incidental and supplementary matter which it thinks expedient for the purpose of any such order to provide including the grant of permit and other document.

3.

Continuance of existing orders.

- Notwithstanding the expiry sub-rule (2) of Rule 81 of the Defence of India Rules, any order regulating or prohibiting the production, distribution, use or consumption of electrical energy issued under the aforesaid sub-rule before such commencement shall continue to be in force in such area and be deemed to be an order made by the State Government under Section 2.

4.

Penalty for contravention of order.

- If any person contravenes any order made or deemed to be made under Section 2 he shall be punishable with imprisonment of either description for a term which may extend to three years or with fine or with both.

5.

Savings.

- The expiration of Rule 81 of the Defence of India Rules shall not affect anything done under that rule or any obligation or liability incurred under any order made under that rule or affect any penalty or punishment in respect of any contravention of any such order or any investigation or legal proceeding, in respect of any such obligation, liability, penalty or punishment as aforesaid; and any such investigation or legal proceeding may be instituted or continued, any such penalty or punishment may be imposed as if the said Rule 81 had not expired.

6.

Effect of order inconsistent with other enactments.

- Any order made or deemed to be made under Section 2, shall have effect notwithstanding anything inconsistent therewith contained in the Indian Electricity Act, 1910 (Act 9 of 1910) or any other enactments (other than this Act) or in any instrument having effect by virtue of any other enactments other than this Act.

7.

Delegation of powers.

- The State Government may by order direct that any power conferred on it by Section 2 shall, in such circumstances and under such conditions, if any, as may be specified in the direction, be exercised by any officer or authority subordinate to it.

8.

Saving as to orders.

(1)

No order made or deemed to be made in exercise of any power conferred by or under this Act shall be called in question in any Court.

(2)

Where an order purports to have been made and signed by any authority in exercise of any power conferred by or under this Act, a Court shall, within the meaning of the Indian Evidence Act, 1872 (Act 1 of 1872) presume that such order was

so made by that authority.

9.

Protection of action taken under this Act.

(1)

No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Act or any order made or deemed to be made thereunder.

(2)

No suit or other legal proceeding shall lie against the Government for any damage caused or likely to be caused by anything in good faith done or intended to be done in pursuance of this Act, or any order made or deemed to be made thereunder.

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